CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E06376AF6
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

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Subject: Energy Crisis Press Conferences at the Capitol: CAUSE and Assem. Republicans file suit against Gov. Davis et al

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Subject: Energy Crisis Press Conferences at the Capitol: CAUSE and Assem.
Republicans file suit against Gov. Davis et al

> Assembly Republicans, led by Assemblymember Tony Strickland, held a press
> conference this morning to announce the filing of a lawsuit against
> Governor Davis, State Controller Kathleen Connell, the Department of Water
> Resources (DWR), and DWR Director Thomas Hannigan.
>
> This event was heavily attended by local media: mainly television and
> radio, with some print reporters.
>
> Assembly Republicans present were:
> Assem. Phil Wyman
> Assem. Dennis Mountjoy
> Assem. Dave Cogdill
> Assem. Keith Richman
> Assem. John Campbell.
>
> Also present was:
> Chuck Bell, attorney at law, representing Assembly Republicans in the suit
> to obtain the state's energy purchase information.
>
> Strickland distributed copies of letters sent to the Department of General
> Services, DWR, State Controller Kathleen Connell and the Department of
> Finance in the last month. These letters were signed by several Assembly
> Republicans, including the newly chosen minority leader Dave Cox, and
> requested the immediate release of all invoices and purchase records on
> energy purchases made by DWR. These letters also requested full
> disclosure of details of the long-term energy contracts signed by the
> Governor. Also included in this packet were documents filed on behalf of
> Assembly Republicans in the Superior Court of San Diego in their suit.
>
> Strickland began his press conference by saying there was a "new band:

> Governor Davis and the merchant generators." He added, "on February 16,
> the Governor said he could solve this problem in 20 minutes by raising
> rates; rates have risen and the problem is not solved."
>
> Referring to a similar suit by members of the media also filed in San
> Diego Superior Court, Strickland said, "the Republicans and the press are
> demanding this information to protect them from the merchant generators."
> He added, "we had no choice but to legally compel [the Governor] to
> release this vital information."
>
> Assem. Phil Wyman said, "it is not a happy occasion when members of the
> Legislature have to join with the Association of Broadcasters to get basic
> information." Wyman added that he doesn't have enough information to
> support certain bills because he doesn't know if there is money available.
>
> On the subject of Tuesday's decision by the PUC to allow a rate increase,
> Assem. Mountjoy said he believes the Governor and the PUC are completely
> connected adding, "this is the Governor's PUC; he pulls the strings
> there."
>
> "This rate increase will impact all Californians," said Assem. Keith
> Richman. "We will all have to pay for the Governor and the Governor's
> PUC's lack of action last fall," when, Richman said, the Republicans
> requested a special session to deal with the energy issue.
>
> Assem. John Campbell said he was concerned about "making votes in a
> vacuum," adding that it was like "asking [members of the Legislature] to
> drive down a dark tunnel with the lights off--you're gonna crash."
>
> When asked who is paying for this lawsuit, Assem. Strickland said,
> "constituents in [his] district" were paying the legal bills.
>
> Attorney Chuck Bell said members of the media filed their suit last week
> and were given a May 18 hearing date. Bell said, "we feel that is too far
> away," and that they were seeking a hearing early next week
>
> When asked if the plaintiffs would be satisfied with a redacted version of
> the information being requested, Bell responded that "AB 1X states...that
> full disclosure is required within 7 days." However, Bell added that they